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Epic Privacy Policy

Last Updated: February 24, 2022

Welcome to Epic. We're glad you want to use the leading streaming service for children's books and other content. We value the privacy of all of our users and we know you care about your privacy and the privacy of your children, so we created this Epic Privacy Policy.

This Privacy Policy explains how we collect, use and protect personal information from our users and website visitors. By accessing or using the Epic website, services, software, applications, and/or content made available by Epic Creations, Inc., "**Epic**" ("**the Service**", "**we**", and "**us**"), you are consenting to collection and use of your information as outlined in this Privacy Policy. When you use the Epic Service, you also agree to our **Terms of Service**. The Epic Service is intended to be used by families at home and on the go. Children may access the Epic Service through a child profile only with the direct involvement of a parent or legal guardian who creates the account. In this Policy, "you" or "your" means a website visitor or adult user of our Service. To understand how we collect and use personal information from child profile users, please see our **"Children's Privacy Policy" section below**.

Please note that the Epic School product is governed by our **Epic School Privacy Policy**, which explains how we collect, use and protect personal information of teachers, parents, and students through the Epic School product. If you or your child uses Epic at school, please refer to the **Epic School Privacy Policy**.

1. INFORMATION WE COLLECT

In providing our Service, we may collect the following information:

- Adult account information: When you create an account, we collect personal information, such as your name, date of birth, email address, and password.
- Information about your child: We also collect information you provide about your child, including age or grade and a name (or nickname) for your child's profile. We do not collect this information directly from child users.
- Payment information: We collect information when you purchase a subscription to the Epic Service, such as your payment information, mailing address, and telephone number.
- Use of Service: We collect information about the use of the Service, such as when, and for how long a user accesses our Service, what content a user views, and what actions he or she takes.

For example, we collect information about how many books your child user has read, the length of time to complete a book, responses to quizzes and the child's reading abilities or interests. We also collect information that you provide in public forums or otherwise voluntarily submit through our product features, and any information you include in communications you send to Epic.

- Device and usage data collected automatically from your use of the Service. Like most websites and online services, Epic and its service providers collect certain information from and about a user's device automatically when you access our Services, read or our emails or engage with us online, through the use of cookies, pixel tags or similar technologies. For example, we collect information about your device, such as the device type, browser type and version, operating system name and version, IP address, and referring URL, and may collect a persistent identifier or unique ID that allows us to identify your browser, mobile device or account. We may also collect the device's location data, or we may approximate your location by analyzing data like IP address. We collect analytics data, or use third-party analytics tools, such as Google Analytics, to help us measure traffic and usage trends for the Service and to understand more about the demographics and behaviors of our users. You can learn more about Google's practices at http://www.google.com/policies/privacy/partners. We collect this information to help us understand usage, to diagnose problems and provide support, to administer our Service, facilitate navigation, display information more effectively, to remember your settings and display information based on your account, to personalize your experience while using the Services, and to recognize your computer in order to assist your use of the Services and for security purposes. We also gather statistical information about use of the Services in order to continually improve its design and functionality, understand how they are used and assist us with resolving questions regarding them. We and our third-party partners also collect device and usage data for purposes of targeted advertising, attribution, research and analytics purposes. We target our ads only to adult audience segments. For more information about tracking technologies, please see **"Third-party tracking and online advertising" section below**.

2. HOW WE USE PERSONAL INFORMATION

We use the personal information we collect to provide the Epic Service and to support, improve and develop our products and services. Specifically, we may use the information we collect:

- To provide you with the features and functionality of the Epic Service, including any special features or services you might request (e.g., monthly subscription) and to provide feedback on your child's reading progress.

- To communicate with you, such as to send you news and updates about the Epic Service (including any updates on product features or policies), to send you transactional notifications such as receipt for payment or subscription notices or other information about your account or respond to your emails or inquiries. From time to time, we may send promotional or informational communications to highlight new features, programs or services or other materials we think will be of interest to you.

- To provide you with personally relevant content or product features, and enable site personalization, such as displaying you or your child's profile name and by allowing users to create a collection of favorite books.
- To provide support and feedback as well as adaptive or personalized learning, including by generating personalized reading recommendations based on the child's interests and reading level.
- To promote the safety and security of our Service, our users and others. For example, we may use information to authenticate users, facilitate secure payments, to investigate and prevent activities that may violate our policies or may be illegal, to respond to legal requests or claims and to enforce our terms and policies.
- For analytics purposes, to understand how our Service is accessed and used and how it performs, so that we may improve design and functionality, demonstrate the effectiveness of our Service, perform research, and develop, support and improve our Service and our other educational products and services. We also perform analytics on aggregate information that does not identify any individual user.

3. HOW WE DISCLOSE OR SHARE INFORMATION

We share or disclose personal information as needed to provide our Service or in accordance with your instructions. We also share personal information in the following circumstances:

- Your profile name may be disclosed to other users or the public if you post or upload any User Content, post comments or reviews or otherwise submit content to the Service.
- If you elect to connect your account to your child's Epic School account, you acknowledge that personal information will be used and shared in accordance with the Epic School Privacy Policy. For example, information may be shared with other users in the child's class and with authorized School users such as teachers or school administrators.
- We share information with our trusted third-party service providers who provide services to us or on our behalf, such as website hosting and customer support services, payment processing, order fulfillment, information technology and related infrastructure provision, customer service, email delivery, auditing, and other services.
- We may disclose information to a third party in the event of any reorganization, merger, sale, joint venture, assignment, transfer or other disposition of all or any portion of our business, assets or stock (including in bankruptcy or similar proceedings).
- We may disclose information as we believe to be necessary or appropriate: (a) under applicable law, including laws outside your country of residence; (b) to comply with legal process; (c) to respond to requests from public and government authorities, including public and government authorities outside your country of residence; (d) to enforce our terms and conditions; (e) to

protect our operations or those of any of our affiliates; (f) to protect our rights, privacy, safety or property, and/or that of our affiliates, you or others; and (g) to allow us to pursue available remedies or limit the damages that we may sustain.

We may also share or disclose information that does not identify or otherwise directly relate to an individual for any purpose, subject to any restrictions imposed by applicable law. For example, we may share aggregated information publicly to demonstrate growth trends related to the usage of the Epic Service in certain areas.

4. THIRD-PARTY TRACKING AND ONLINE ADVERTISING

We participate in interest-based advertising and use third-party advertising companies to serve targeted advertisements to an adult audience based on browsing history. These third-party online advertising networks, social media companies and other third-party services collect information directly from your browser or device when you visit or interact with our website over time and use this information to direct our online advertisements to those people who may find them relevant to their interests. These third parties use this data to serve interest-based ads to you on other websites, mobile apps or other devices you may use, to provide customized content and perform other advertising-related services such as reporting, attribution, analytics and market research. Typically, though not always, the information is collected through cookies or similar tracking technologies.

Controlling cookies and tracking technologies. Most browsers will allow you to reject cookies or other tracking technology by actively managing the settings on your browser or mobile device. Blocking or deleting cookies may negatively impact your experience using the Service, as some features and services on our Service may not work properly. Depending on your mobile device and operating system, you may not be able to delete or block all tracking technologies.

To learn more about cookies, clear gifs/web beacons and online advertising technologies and how you may opt out of some of this advertising, you may wish to visit the Digital Advertising Alliance's resources at www.aboutads.info/choices and/or the Network Advertising Initiative's online resources, at www.networkadvertising.org. Please note that these opt-out choices may not affect online advertising that is not cookie-based. Additionally, these opt outs are device- and browser-specific and may not be effective unless your browser is set to accept cookies. If you delete cookies, change your browser settings, switch browsers or computers, or use another operating system, you may need to opt out again. You may also be able to limit interest-based advertising through the settings on your mobile device by selecting "limit ad tracking" (iOS) or "opt out of interest based ads" (Android). You may also be able to opt out of some – but not all – interest-based ads served by mobile ad networks by visiting http://youradchoices.com/appchoices and downloading the mobile AppChoices app.

Please note: although we may permit third-party advertising partners to collect information from visitors to adult-directed pages of our website for the purpose of displaying advertisements on other websites or online services on our behalf, we take steps to prevent these third parties from collecting information from child users for targeted advertising purposes by disabling these third-party tools once

a user signs into an authenticated user account our Service. Additionally, we target our ads only to adult audience segments.

5. TRANSPARENCY AND CONTROLS

We understand and respect your privacy concerns at Epic. Accordingly, we provide you with the ability to make certain choices related to our collection, use, and sharing of your information.

- You may edit or delete information in your user account.
- You may make choices regarding subscriptions, updates, and product alerts.
- You may request access to the personal information that we have collected in connection with your account and ask us to change or delete it.
- If you would like to exercise such rights, you can do so by emailing: **privacy@getepic.com** with the subject line, "Privacy Request," or submit a request through the **Epic Help Center**.
- If you would like to opt out of marketing communications from Epic you can do so by emailing: **support@getepic.com** or by clicking the unsubscribe link in each such communication. If you would like to contact us with questions or feedback, please **contact us here**.

6. CHILDREN'S PRIVACY

We do not permit children under 13 to create an account and do not knowingly collect personal information from children under the age of 13 without the consent and at the direction of a parent or teacher. Please contact us if you believe we have inadvertently collected information from a child under 13 without parental consent so that we may delete the information as soon as possible.

Parents who create an account or purchase a subscription to the Service may set up a child profile associated with the parent's account so that children under 13 may access the Epic Service under the parent's supervision. Please review the **"Children's Privacy Policy" section below** to learn more about how Epic collects, uses and shares information associated with child profiles.

When Epic is used in an educational setting, a teacher, principal or other school administrator may authorize Epic to collect information from a child under 13. Please review the **Epic School Privacy Policy** to learn more about how Epic collects information in connection with the Epic School product.

7. THIRD-PARTY SERVICES

This Privacy Policy does not address, and we are not responsible for, the privacy, information or other practices of any third parties, including any third party operating any site or service to which the Services link. The inclusion of a link on the Services does not imply endorsement of the linked site or service.

8. HOW WE STORE AND PROTECT YOUR INFORMATION

We use reasonable organizational, physical, technical and administrative measures that are designed to preserve the integrity and security of the personal information we collect and to help protect against unauthorized access or disclosure, such as password protection and secure socket layer. Unfortunately, no data transmission or storage system can be guaranteed to be 100% secure. If you have reason to believe the security of your account has been compromised, please immediately notify us in accordance with the **"Contact Us" section below**.

9. YOUR CALIFORNIA CONSUMER PRIVACY RIGHTS

This section applies to you if you are a resident of the state of California and for purposes of this section the term "personal information" has the meaning provided by the California Consumer Privacy Act (the "CCPA"). Please note this section does not apply to the Student Data that we process in connection with the Epic School product, as we operate as a service provider to process such data for our School customers.

We collect personal information directly from you, from your browser or device when you visit our Service, or from third parties that you permit to share information with us (for example, if you create an account using a single sign-on service). In the last 12 months, the personal information we have collected may include: identifiers (such as your name, email address and date of birth), commercial information (such as records of purchases), internet/network information (such as device identifiers, logs and analytic data), and inferences based on your interests, preferences and usage of the Service. We disclose personal information to our service providers and advisors, analytics providers, and other third parties with whom elect to share information or have integrated with your service.

Residents of California may be entitled to certain rights with respect to personal information that we have collected about them under the CCPA:

- **Right to Know.** The right to request to know more about the specific pieces or categories of personal information we have collected, the categories of data sources, and the categories of third parties with whom we have shared the personal information for a business or commercial purpose in the last 12 months.
- **Right to Request Deletion.** The right to request the deletion of personal information that we have collected from you, subject to certain exceptions.
- **Right to Opt Out of Personal Information Sales.** The right to direct us not to sell (as such term is defined by the CCPA) personal information we have collected about you to third parties.

You also have the right to be free of discrimination for exercising these rights. However, please note that if the exercise of these rights limits our ability to process personal information (such as in the case of a deletion request), we may no longer be able to provide you the Service or engage with you in the same manner.

To submit your California Consumer Privacy Rights Request: To request to exercise your right to know and/or right to deletion, please submit a request by emailing **privacy@getepic.com** with the subject line, "California Rights Request," or submit a request through the **Epic Help Center**. Please provide your user name, email address, and the consumer right you would like to exercise, and let us know if you are submitting the request for yourself or on behalf of another user. We will need to verify your identity before processing your request, which may require us to request additional personal information from you or require you to log into your account, if you have one. In certain circumstances, we may decline or limit your request, particularly where we are unable to verify your identity or locate your information in our systems, or as otherwise permitted by law.

We do not "sell" personal information to third parties. However, as is common practice among companies that operate online, we do allow certain third-party advertising networks and other third-party businesses to collect personal information directly from your browser or device through cookies and related technologies for the purpose of serving ads that are more relevant, for ad campaign measurement and analytics, for fraud detection and reporting, and for research purposes. These third parties may use such personal information for their own purposes in accordance with their own privacy statements, which may include reselling this information to additional third parties for advertising and other purposes. By visiting **privacyrights.info** or **optout.privacyrights.info**, you can opt out from sales of this type of personal information by businesses that participate in the opt-out tool. To make opt-out requests related to mobile apps on your device for businesses participating in the DAA's CCPA App-based Opt-Out Tool, you can download the app at **www.youradchoices.com/appchoices**.

Shine the Light. California "Shine the Light" law (Civil Code Section §1798.83) provides certain rights to California residents that have an established business relationship with us with regard to the disclosure of certain types of personal information to third parties for their direct marketing purposes. We do not share your personal information with third parties for their direct marketing purposes without consent.

Minors. We do not sell the personal information of consumers we know to be less than 16 years of age. We also take steps to prevent third parties from collecting information from child users of our Service (of any age) for targeted advertising purposes by disabling these third-party tools once a user signs into an authenticated user account our Service.

10. CHANGES TO THIS PRIVACY POLICY

We reserve the right to change or modify our Privacy Policy from time to time by posting a revised Privacy Policy on our site. The "last updated" legend at the top of this page indicates when this Policy was last revised. Your use of the Services following these changes means that you accept the revised Privacy Policy.

11. CONTACT US

If you would like to contact us with questions or feedback, please email us at **privacy@getepic.com** or **contact us here**.

Epic is owned and operated by Epic Creations, Inc., 228 Hamilton Avenue, floor 3, Palo Alto, CA 94301.

CHILDREN'S PRIVACY POLICY

If you are a parent who has created a child profile, please review this section to learn how we collect and use the child's personal information and to learn about your rights.

If your child uses Epic at school, or if you connect your account to your child's school account, please refer to the **Epic School Privacy Policy** which governs the use of the Epic School product.

Protecting the privacy of our youngest users is fundamental to our mission and business. We are committed to the following principles to protect children's personal information:

- We do not collect personal information of a child we know to be under 13 without the consent, and active participation, of a parent.
- We collect only as much personal information as is reasonably necessary for the child to use the Epic Service.
- We do not display targeted ads to child users in Epic.
- We do not use or disclose data collected from child users for targeted advertising or marketing purposes.
- We believe that parents should have control over their child's data.
- We will not knowingly retain a child's personal information after it is no longer needed for the purpose for which it was collected.
- We will never sell or rent a child's personal information to third parties, unless the sale is part of a corporate transaction, such as a merger, acquisition, bankruptcy, or other sale of assets.
- We employ industry-standard network security and encryption technology to protect children's personal information.

Creating a child profile

We do not permit children under 13 to create an account and do not knowingly collect personal information from children under the age of 13 without the consent and at the direction of a parent.

Parents who create an account or purchase a subscription to the Service may set up a child profile associated with the parent's account so that children under 13 may access the Epic Service under the parent's supervision. Each child user profile must be associated with a Parent account, and the parent must sign into the account and select the child profile before the child may use the Service. We take special precautions to collect only as much information as is reasonably necessary for the child to use

the Epic Service and to ensure that parents have access to and control of their child's use of the Service.

How We Collect and Use Personal Information of a Child

Profile Information. We ask you, the parent, to provide personal information about the child, such as a name or nickname, age or grade and reading level, to create the child's profile. Epic does not request any additional personal information from the user of the child profile.

Usage Information. We collect information about the child's use of the Service, for example, how many books your child has read, the length of time to complete a book, topics or titles searched for, the child's reading abilities or interests, and responses to quizzes, which we link to the child's profile information.

We use this information to provide the Service to you and your child and to personalize the user experience, such as by displaying the child profile name on the reading dashboard, making book recommendations based on reading level or interests, and sending in-app messages or notifications. We send email communications only to you, the parent, at the email address you provided during account creation to communicate messages about the account.

Device Information. When a child user accesses the Service through your parent account, we automatically collect usage information and information about the device used to access the Service. For example, we collect the IP address, device type, browser type and version, operating system name and version, and may collect a persistent identifier or unique ID that allows us to identify the browser, mobile device or account. We may also collect the device's location data, or we may approximate location by analyzing data like IP address. This information is typically collected through cookies or similar tracking technologies, and we may use third-party providers to collect this information on our behalf. We collect this information to help us understand usage, to diagnose problems and provide support, to administer our Service, facilitate navigation, display information more effectively, to remember users' settings and preferences, to personalize the user's experience while using the Services, and to recognize a user's computer or device in order to assist your use of the Services and for security purposes.

How We Share or Disclose a Child's Personal Information

We share or disclose your child's personal information in limited circumstances. We do not permit a child profile user to communicate with others through the Service, though you can send messages to your child within the Service and your child can respond to you using preselected phrases, emojis or images.

We may otherwise share or disclose a child's personal information as needed to provide our Service or with your consent or permission. For example, we share information with our trusted third-party service providers who provide services to us or on our behalf, such as website hosting and customer support services, information technology and related infrastructure provision, and other services. We may also

share personal information if we believe to be necessary or appropriate: (a) under applicable law; (b) to comply with legal process; (c) to respond to requests from public and government authorities, including public and government authorities outside your country of residence; (d) to enforce our terms and conditions; (e) to protect our operations or those of any of our affiliates; (f) to protect our rights, privacy, safety or property, and/or that of our affiliates, our users or others; and (g) to allow us to pursue available remedies or limit the damages that we may sustain.

If Epic becomes involved in a merger, acquisition, bankruptcy, change of control, or any form of sale of some or all of its assets, a child's personal information may be transferred or disclosed in connection with the business transaction, subject to any applicable laws.

We may also share aggregate or de-identified information in a manner that cannot be reasonably used to identify an individual user.

Third-party tracking and online advertising

Epic does not display any targeted advertising on the Service. We permit advertising networks and similar third parties to collect information from website visitors on adult-directed pages of our website to direct targeted advertising on other websites or services. You can learn more about this practice by referring to Section 4 of this Privacy Policy. However, we take steps to prevent these third parties from collecting information from child users by disabling these third-party technologies once a user signs into an authenticated account (e.g., once you sign in to your account through which your child accesses the child profile).

How to access and delete your child's personal information

You may access, review or modify the personal information we have collected about your child profile at any time by signing into your parent account.

You may also email us at **privacy@getepic.com** or contact us here to request to review or request deletion of the information we have collected from your child through the Service. You may refuse to permit any further collection of your child's information by no longer providing the child user access to the Service through your parent account.

Unless you submit a deletion request, we will retain the personal information collected from you and your child for as long as necessary to provide the Service and will thereafter de-identify or delete the child's personal information.

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